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Case Number: 25STCV02058 Hearing Date: July 27, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/27/2026

CASE NUMBER: 25STCV02058

CASE NAME: MICHAEL BLAIR LYMAN, et al. vs GENERAL MOTORS LLC, et al.

MOVING PARTY: Plaintiff Michael Blair Lyman

OPPOSING PARTY: Defendant General Motors LLC.

PROCEEDING: Motion for attorneys' fees

RULING SUMMARY: Plaintiffs Michael Blair Lyman and Carrie Lynn Lyman's Motion for Attorneys' Fees is granted in the amount of $14,806.00.

Background

On January 24, 2025, plaintiffs Michael Blair Lyman and Carrie Lynn Lyman ("Plaintiffs") filed their Complaint against defendants General Motors, LLC ("GM") and Chavez Buick GMC ("Chavis GMC"), alleging five causes of action for (1) Violation of Subdivision (d) of Civ. Code § 1793.2; (2) Violation of Subdivision (b) of Civ. Code § 1793.2; (3) Violation of Subdivision (a)(3) of Civ. Code; (4) Breach of the Implied Warranty of Merchantability (Civ. Code §§ 1791.1, 1794); and (5) Violation of Magnuson-Moss Warranty Act (15 U.S.C. §§

2301-2312).

Plaintiffs
allege that on or about June 21, 2022, they purchased a 2022 GMC Sierra 1500 with vehicle identification number 3GTUUEET4NG542730 (the “Subject Vehicle”), manufactured and/or distributed by GM, which came with various warranties; during the warranty period, the Subject Vehicle contained or developed defects, including exhaust system defects; Defendants had a duty to either promptly replace the Subject Vehicle or make restitution to Plaintiffs under the Song-Beverly Consumer Warranty Act (“Song-Beverly”); and Defendants failed to do so.

On
September 25, 2025, Plaintiffs filed a Notice of Settlement of the Entire Case. On November 24, 2025, the Court entered an Order of Dismissal concerning the entire action.

On
February 02, 2026, Plaintiffs filed this Motion for Attorneys’ Fees. On April 01, 2026, GM filed its Opposition. On April 07, 2026, Plaintiffs filed their
Reply.

LEGAL STANDARD

A prevailing party in entitled to recover costs, including attorneys’ fees. (Code Civ. Proc., §§ 1032(a)(4), 1032(b), 1033.5.)¿¿

In Song-Beverly claims, if the buyer of a consumer good who is damaged by a failure to comply with the Song-Beverly Act prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code § 1794(d).)

The fee-setting inquiry in California ordinarily begins with the “lodestar” method, i.e., the number of hours¿reasonably expended¿multiplied by the reasonable hourly rate. A computation of time spent on a case and the reasonable value of that time is fundamental to a determination of¿an appropriate attorneys’¿fee award. The lodestar figure may then be adjusted, based on consideration of factors specific to the case,¿in order to¿fix the fee at the¿fair market value¿for the legal services provided. (Serrano v. Priest¿(1977) 20 Cal.3d 25, 49.)¿ Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (Id. at 48, n.23.) After the trial court has performed the lodestar calculations, it shall consider whether the total award so calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure.¿ (PLCM Group v. Drexler¿(2000) 22 Cal.4th 1084, 1095-96.)

The factors considered in determining the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm, LLC v. Teitler Family Trust¿(2008) 162 Cal. App. 4th 770, 774.)¿A¿negative modifier was¿appropriate when¿duplicative work had been performed. (Thayer v. Wells Fargo Bank, N.A.¿(2001) 92 Cal.App.4th 819.)¿"In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citation], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases. [Citation.]" (569 East County Boulevard, LLC v. Backcountry Against the Dump, Inc.¿(2016) 6 Cal.App.5th 426, 437.)

DISCUSSION

As an initial matter, while Song-Beverly claims allow recovery of costs and expenses, including attorneys’ fees, this is a Motion for Attorneys’ Fees only. There is a separate procedure for ordinary litigation costs which is designed to provide an orderly, line-item mechanism for placing disputed costs at issue, allowing the opposing party to file a motion to strike or tax those specific costs. (See Rules of Court, Rule 3.1700.) The Court does not address Plaintiffs’ request for costs and expenses.

Plaintiffs seek attorneys’ fees in the amount of $23,167.20 [$19,306.00 plus a lodestar multiplier of .2 in the amount of $3,861.20]. Plaintiffs argues that (1) counsels' hourly rates, which range from $125 to $575, are reasonable; (2) the number of hours requested, 31.40 hours, is reasonable for over four years of litigation; (3) a multiplier enhancement of .2 is reasonable the litigation was complex and conducted on a contingency basis. Regarding costs, Plaintiffs note that GM agreed to pay Plaintiffs' costs, including attorneys' fees, through the settlement agreement. (See Decl. Pengilley ¶ 49-51.)

The rates of Plaintiffs' attorneys are as follows:

- Stephanie Pengilley (senior counsel) - $575.00/hr;
- Armig Khodanian (managing attorney, approx. 12 years' experience) - $500.00/hr;
- Andres Quiroga Roldan (associate, approx. 2 years' experience) - $400.00/hr;
- Vivian Chen (approx. 3 years' experience) - $475.00/hr;
- Victor Block (approx. 27 years' experience) - $675.00/hr;
- Law clerks - $250.00/hr; and
- Paralegals, legal assistants and case managers – $125.00/hr.[1]

(See Decl. Pengilley at ¶¶ 5-15 and Exh. A,) GM argues that the following items should be stricken:

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Pre-engagement work in the amount of $4,500.00;

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Unserved discovery requests in the amount of $650.00;

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Templated deposition notice in the amount of $100.00;

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Preparing for and attending the deposition of GM's PMK in the amount of $1,485.00;

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Templated fee motion in the amount of $7,300.00 should be reduced to $6,437.50.

GM argues that this case does not warrant a multiplier as Plaintiffs' counsel has not satisfied the following elements: (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.

In the Reply, Plaintiff argues that pre-litigation costs have been upheld by other trial courts, attorneys are entitled to their time spent preparing discovery requests, the time spent in drafting the deposition notice and attending the deposition is recoverable, and a multiplier is appropriate for the circumstances of the case.

The correct measure for attorneys' fees is the market value of the services, and "[t]his standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel.” (Nemecek & Cole v. Horn (2012) 208 Cal.App.4th 641, 651.) “Absent an arbitrary ruling, case law gives trial judges great discretion in using their knowledge and experience to assess the ‘ “ ‘value of professional services rendered in his [or her] court,’ ” ’ even without the necessity of expert testimony. [Citations.]” (Marshall v. Webster (2020) 54 Cal.App.5th 275, 287 [internal citations omitted]; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 [“The ‘ “experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.” ’ ”].)

As GM does not challenge Plaintiffs’ attorneys’ hourly rates, the rates are accepted as reasonable for the purpose of this motion.

The Court makes the following changes:

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A lodestar multiplier will not be applied, because, although this case was taken on a contingency is basis, it is neither novel nor complex for a Song-Beverly case; and

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The pre-litigation expenses ($4,500.00) are not awarded, as Plaintiff bears the burden of proof for attorneys’ fees (see Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104 (“prevailing buyer has the burden of ‘showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount[]' ") and Plaintiff has not provided sufficient support to meet that burden.

For the reasons explained above, the Motion for Attorneys’ Fees is granted in the amount of $14,806.00.

Conclusion

Plaintiffs

Michael Blair Lyman and Carrie Lynn Lyman's Motion for Attorneys' Fees is granted in the amount of $14,806.00.

Date: 07/27/2026 ________________________________

William
E. Weinberger

Judge,
Los Angeles Superior Court

[1]
While Stephanie Pengilley states that paralegals increased their rates in 2026 to $195 (Decl. Pengilley ¶ 15), there is only one charge that exceeds $125.00, at a rate of $150.00 for Roxana Rosas on September 05, 2025.